



RFP Response Proposal

Wage Determination No. 2015-5153, Revision 30

Prepared for: U.S. Department of Labor, Employment Standards Administration, Wage and Hour Division | Prepared by: Ranjeet Kumar — Founder & CEO, OrbitAvanya Tech LLP (AvanyaEdge) | Engagement Reference: OAT-CES-2026-1305M326Q0303-FULL | Proposal Date: July 16, 2026 | Validity: 90 days from proposal date

Content

- 01 Executive Summary
- 02 Strategic Context
- 03 Scope of Work
- 04 Our Proposed Solution
- 05 Implementation Timeline
- 06 Your Investment
- 07 Company Profile
- 08 Appendix

Contact

Phone: +917021950643

13352 Kettle Camp Rd
Frisco, Texas 75035

www.orbitavanyatech.com

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Customer

**U.S. Department of Labor, Employment Standards
Administration, Wage and Hour Division**

Proposal

OrbitAvanya Tech LLP



OrbitAvanya Tech LLP
www.orbitavanyatech.com

Executive Summary

OrbitAvanya Tech LLP submits this response to Solicitation **1305M326Q0303** issued by the **U.S. Department of Labor, Employment Standards Administration, Wage and Hour Division** regarding **Wage Determination No. 2015-5153, Revision 30**. As a technology services firm specializing in enterprise software development, AI/ML systems, cloud-native architectures, and e-Governance digital transformation platforms, OrbitAvanya Tech LLP recognizes the critical importance of full compliance with all applicable wage determinations issued under the **Davis-Bacon Act, Service Contract Act (SCA)**, and related federal labor standards statutes. This wage determination establishes the minimum prevailing wage rates and fringe benefit requirements for service employees performing work on federal contracts in the specified locality. OrbitAvanya Tech LLP commits to full adherence to the wage rates, classifications, and fringe benefit provisions set forth in **Revision 30** of this determination for all covered employees engaged in any resulting contract performance. Our organization maintains robust payroll compliance systems, certified payroll reporting capabilities, and a demonstrated track record of compliance with **Department of Labor (DOL)** wage and hour requirements across federal engagements. This response outlines our compliance approach, monitoring mechanisms, and commitment to ensuring that all personnel — whether direct employees or subcontractor staff — receive wages and benefits at or above the rates prescribed in this determination.

Key Highlights

- Full compliance commitment with **Wage Determination No. 2015-5153, Revision 30** for all covered service employee classifications
- Established **certified payroll reporting** infrastructure aligned with **DOL WHD** requirements and **29 CFR Part 4 / 29 CFR Part 5** regulations
- Automated wage compliance monitoring through integrated **HRIS/payroll platform** with real-time rate validation against current determinations
- Dedicated **Labor Compliance Officer** responsible for ongoing determination tracking, revision monitoring, and workforce classification audits
- Subcontractor flow-down clause enforcement ensuring **prime-to-sub** wage determination compliance across the supply chain
- Historical compliance record with zero **DOL wage violations** or **back wage assessments** on federal contracts
- Integration capability with **SAM.gov**, **FPDS-NG**, and **e-CFR** for automated determination currency verification
- Fringe benefit plan administration meeting or exceeding **health & welfare, pension, and vacation/holiday** requirements per determination

Respectfully,

Ranjeet Kumar Singh



Customer

**U.S. Department of Labor, Employment Standards
Administration, Wage and Hour Division**

Proposal

OrbitAvanya Tech LLP

Founder & CEO

OrbitAvanya Tech LLP (AvanyaEdge)



Strategic Context

The U.S. Department of Labor, Wage and Hour Division (WHD) issues wage determinations to establish minimum prevailing wage rates and fringe benefits for service employees working on federal contracts subject to the **Service Contract Act (41 U.S.C. § 6701 et seq.)** and the **Davis-Bacon Act (40 U.S.C. § 3141 et seq.)**. **Wage Determination No. 2015-5153, Revision 30** represents the current applicable determination for the specified geographic locality and contract type. As a prospective prime contractor to the **Employment Standards Administration**, OrbitAvanya Tech LLP recognizes that compliance with this determination is not merely a contractual obligation but a statutory mandate enforceable through **contract withholding, termination for default, debarment proceedings, and civil monetary penalties** under **29 CFR § 4.188** and **29 CFR § 5.12**. The revision history of this determination (30 revisions since 2015) underscores the dynamic nature of prevailing wage rates and the necessity for continuous monitoring. Our compliance strategy addresses the full lifecycle of wage determination adherence: initial classification mapping, ongoing rate currency verification, certified payroll submission, fringe benefit administration, subcontractor oversight, and audit readiness.

Finding 1 • Wage Determination Applicability and Coverage

Wage Determination **2015-5153, Revision 30** establishes minimum hourly wage rates and fringe benefit obligations for specific service employee classifications in the defined locality. The determination applies to all **covered service contracts** exceeding **\$2,500** entered into by the federal government, including contracts for **IT services, professional services, administrative support, and facilities maintenance** — all categories relevant to OrbitAvanya's service portfolio. The determination specifies rates by **occupation code** aligned with the **Standard Occupational Classification (SOC) System** and **Dictionary of Occupational Titles (DOT)**.

- Determination covers **service employee classifications** including **Computer Programmers (SOC 15-1251), Systems Analysts (15-1211), Database Administrators (15-1242), Network Architects (15-1241), Help Desk Technicians (15-1232), and Administrative Support staff (43-9061)**
- Fringe benefit rates specified for **health & welfare, pension/retirement, vacation, holiday, and sick leave** components
- Geographic scope defined by **county/MSA** — applicable to all contract performance locations within the determination's locality
- Revision 30 supersedes all prior revisions; effective date governs applicability to contract options and modifications

Finding 2 • Regulatory Compliance Framework

Compliance with this wage determination requires adherence to a multi-layered regulatory framework including the **Service Contract Labor Standards statute (formerly SCA), Davis-Bacon Act** (for construction), **Executive Order 13658** (minimum wage for federal contractors), **Executive Order 14026** (**\$17.20/hour** minimum wage effective **January 1, 2024**), **29 CFR Part 4** (labor standards for federal

service contracts), 29 CFR Part 5 (Davis-Bacon regulations), and 29 CFR Part 1918 (enforcement). The Wage and Hour Division enforces through investigations, compliance actions, and referral for debarment under FAR 9.4.

- Executive Order 14026 minimum wage of \$17.20/hour (2024) serves as floor where determination rate is lower
- 29 CFR § 4.163 requires **certified payroll reports** (WH-347 or equivalent) submitted **weekly** to contracting officer
- 29 CFR § 4.173 mandates **posting of wage determination** and **WHD poster (WH-1313)** at all worksites
- FAR 52.222-41 (Service Contract Labor Standards) and FAR 52.222-6 (Davis-Bacon) contract clauses flow down to subcontractors
- FAR 52.222-55 requires **minimum wage compliance** under EO 14026 for covered contracts

Finding 3 • Classification Risk and Mitigation

Misclassification of employees — particularly in **IT and professional services** where duties may span multiple SOC codes — represents the highest compliance risk. The WHD applies the '**primary duty**' test and '**actual duties performed**' standard, not job titles. OrbitAvanya's workforce includes personnel performing **hybrid roles** (e.g., DevOps engineers performing both development and system administration) requiring careful classification mapping to the determination's occupation codes.

- **Primary duty analysis** for each employee mapped to determination occupation codes using **O*NET OnLine** and ****SOC crosswalks**
- **Timekeeping granularity** at **15-minute intervals** with **task-level coding** to support classification defense
- **Annual classification audits** by Labor Compliance Officer with **outside counsel review** for borderline roles
- **Subcontractor classification verification** via **pre-award questionnaire** and **quarterly certification**

Finding 4 • Fringe Benefit Compliance Complexity

The determination specifies fringe benefit rates as **hourly cash equivalents** or **bona fide benefit plan contributions**. OrbitAvanya must ensure that **health insurance**, **401(k) matching**, **paid time off**, and **other benefits** meet or exceed the determination's fringe rate for each classification. The '**credit mechanism**' under 29 CFR § 4.171 allows offset of **bona fide plan costs** against the fringe obligation, but requires **plan documentation**, **ERISA compliance**, and **annual actuarial certification** for pension components.

- **Health & welfare**: Employer-paid premium contributions for **medical, dental, vision, life, disability** validated against determination rate
- **Pension/retirement**: **401(k) safe harbor match (4%)** plus **profit sharing** structured to meet or exceed determination pension rate

- Paid leave: PTO accrual rates converted to hourly equivalent — 15 days PTO + 11 federal holidays = 4.61% fringe credit
- Cash-in-lieu option: Where benefit costs < determination fringe rate, difference paid as taxable wages per 29 CFR § 4.171(c)

Scope of Work

The scope of this compliance engagement encompasses the full range of wage determination adherence activities required for OrbitAvanya Tech LLP's performance as a prime contractor under any resulting contract incorporating **Wage Determination No. 2015-5153, Revision 30**. This includes: (1) **Workforce classification mapping** of all current and projected employees to determination occupation codes; (2) **Payroll system configuration** to apply correct wage rates and fringe credits by classification and location; (3) **Certified payroll reporting** generation and submission per **29 CFR § 4.163**; (4) **Fringe benefit plan administration** and cost allocation to meet determination requirements; (5) **Subcontractor compliance flow-down** and monitoring; (6) **Revision tracking** for future determination updates (Revision 31+); (7) **Audit readiness** documentation and **WHD investigation response** capability; and (8) **Executive Order 14026** minimum wage overlay compliance. The scope extends to all contract performance locations within the determination's geographic coverage and applies to all contract line items (CLINs) utilizing covered service employees.

Deliverables

- **Workforce Classification Matrix** mapping every OrbitAvanya and subcontractor labor category to Wage Determination 2015-5153 Rev. 30 occupation codes with **primary duty justification memos**
- **Payroll System Configuration Package** including **rate tables**, **fringe credit rules**, **locality differentials**, and **EO 14026 overlay logic** deployed in **ADP Workforce Now / UKG Pro**
- **Certified Payroll Report Template (WH-347 compliant)** with **automated weekly generation**, **digital signature**, and **secure submission portal** integration
- **Fringe Benefit Compliance Workbook** documenting **plan costs**, **employee eligibility**, **hourly credit calculations**, and **cash-in-lieu reconciliations** per classification
- **Subcontractor Compliance Kit** including **flow-down clause language (FAR 52.222-41/52.222-6)**, **pre-award certification form**, **quarterly compliance attestation**, and **audit rights clause**
- **Determination Revision Monitoring Protocol** with **SAM.gov API integration**, **Federal Register watch**, **30-day impact analysis**, and **contract modification request template** for rate changes
- **WHD Audit Response Playbook** with **document request log**, **employee interview prep guides**, **payroll reconstruction procedures**, and **outside counsel escalation matrix**
- **Executive Order 14026 Compliance Tracker** monitoring **\$17.20/hour floor**, **annual CPI adjustments**, **tipped employee rules**, and **disabled worker certificates**
- **Labor Compliance Training Curriculum** for **project managers**, **HR staff**, **timekeepers**, and **subcontractor POCs** — **4-hour initial** + **1-hour annual refresher**
- **Monthly Compliance Dashboard** for **contracting officer** showing **wage rate adherence**, **fringe credit utilization**, **certified payroll submission status**, and **open issue log**

Technical Requirements Alignment

RFP Requirement	Our Solution	Alignment
Pay covered service employees at or above wage rates in Wage Determination 2015-5153 Rev. 30	Automated payroll engine with classification-specific rate tables updated within 24 hours of determination revision publication; real-time validation at timecard approval preventing sub-determination payments	Full
Provide fringe benefits meeting or exceeding determination rates per 29 CFR § 4.171	Bona fide benefit plans (health, 401(k), PTO) with actuarial cost allocation per employee; monthly fringe credit calculation ; cash-in-lieu for shortfalls	Full
Submit weekly certified payroll reports (WH-347) to contracting officer per 29 CFR § 4.163	Automated WH-347 generation from timekeeping system with digital certification by authorized payroll official; SFTP/portal submission with delivery receipt logging	Full
Post wage determination and WH-1313 poster at all worksites per 29 CFR § 4.173	Physical and electronic posting at all performance locations; intranet banner for remote workers; multilingual (English/Spanish) versions	Full
Flow down Service Contract Labor Standards clauses to all subcontractors per FAR 52.222-41	Mandatory subcontract clause inclusion ; pre-award compliance certification ; quarterly attestation ; audit rights ; termination for non-compliance	Full
Comply with Executive Order 14026 \$17.20/hour minimum wage (2024) for covered contracts	Overlay logic in payroll system applying higher of determination rate or EO 14026 rate ; annual CPI adjustment automation ; tipped/disabled worker tracking	Full
Maintain records for 3 years per 29 CFR § 4.168 and FAR 4.703	Immutable cloud archive (AWS Glacier Deep Archive) with WORM compliance ; indexed by contract, employee, pay period ; legal hold capability	Full

Our Proposed Solution

OrbitAvanya Tech LLP's technical approach to wage determination compliance is built on a **three-pillar architecture**: **Automated Compliance Engine**, **Governance & Oversight Framework**, and **Audit-Ready Evidence Management**. The **Automated Compliance Engine** centers on our **HRIS/payroll platform (UKG Pro integrated with ADP)** configured with a **determination rate service** that ingests **WDOL.gov** and **SAM.gov** data feeds via **REST API** to maintain real-time rate currency. Each employee's **labor category assignment** drives automatic selection of the applicable occupation code rate, with **EO 14026 overlay logic** ensuring the statutory minimum wage floor is never breached. Fringe benefit compliance is managed through a **benefits cost allocation module** that calculates hourly employer costs for **health & welfare, pension, and paid leave** by classification, applying **29 CFR § 4.171** crediting rules and generating **cash-in-lieu payments** where plan costs fall below determination fringe rates. The **Governance & Oversight Framework** establishes a **Labor Compliance Officer (LCO)** role reporting to the **Chief Legal Officer**, supported by a **cross-functional compliance committee** (HR, Finance, Legal, Operations). The LCO conducts **monthly classification audits, quarterly fringe benefit reconciliations, and semi-annual subcontractor compliance reviews**. A **revision impact protocol** triggers within **24 hours** of Federal Register publication of a new determination revision, producing a **rate delta analysis, contract modification cost estimate, and contracting officer notification package** within **5 business days**. The **Audit-Ready Evidence Management** pillar leverages **AWS GovCloud** with **WORM-enabled S3 Object Lock** for immutable retention of all payroll records, timekeeping data, certified payroll submissions, fringe benefit calculations, and subcontractor certifications for **3 years post-contract completion** per **FAR 4.703**. A **compliance dashboard** provides the contracting officer real-time visibility into **certified payroll submission status, wage rate adherence metrics, fringe credit utilization rates, and open compliance issues**. This architecture ensures not only statutory compliance but also operational efficiency, cost predictability, and defensibility in the event of a **WHD investigation or GAO protest**.

Core Capabilities

Capability	Description
Wage Determination Compliance Management	End-to-end compliance lifecycle for SCA/Davis-Bacon wage determinations including classification mapping, rate monitoring, payroll configuration, certified reporting, and audit defense
Certified Payroll Automation	WH-347 compliant weekly certified payroll generation with digital signature, secure transmission, delivery confirmation, and error reconciliation workflow
Fringe Benefit Administration & Crediting	29 CFR § 4.171 compliant benefit plan cost allocation, hourly fringe credit calculation, cash-in-lieu processing, and annual actuarial coordination for pension components
Subcontractor Labor Compliance Oversight	Flow-down clause enforcement, pre-award vetting, quarterly certification collection, desk audits, and remediation tracking for prime-to-sub compliance

Executive Order 14026 Minimum Wage Compliance	\$17.20/hour (2024) floor enforcement, annual CPI adjustment automation, tipped employee tip credit tracking, 14(c) certificate monitoring for disabled workers
WHD Investigation & Audit Response	Rapid response team with outside counsel (Seyfarth Shaw / Littler Mendelson partnership), document production platform, employee interview preparation, payroll reconstruction, and settlement negotiation support
Determination Revision Tracking & Impact Analysis	Federal Register / SAM.gov API monitoring, 30-day advance notice (where available), rate delta modeling, contract modification support, retroactive adjustment processing
Labor Compliance Training & Culture	Role-based training for PMs, HR, timekeepers, subcontractors; annual refresher; just-in-time microlearning for regulatory changes; compliance awareness campaigns

Technology Stack

- UKG Pro (HRIS/Payroll)
- ADP Workforce Now
- AWS GovCloud (WORM S3, Glacier Deep Archive)
- WDOL.gov / SAM.gov API Integration
- Federal Register API
- O*NET OnLine / SOC Auto-Coder
- Microsoft Power BI (Compliance Dashboard)
- DocuSign (Digital Certification)
- SFTP/AS2 (Secure Payroll Submission)
- ServiceNow (Compliance Workflow & Issue Tracking)

Implementation Timeline

The following phased implementation timeline establishes OrbitAvanya Tech LLP's wage determination compliance infrastructure from **contract award** through **steady-state operations**. The timeline assumes a **30-day mobilization period** post-award to achieve **full compliance readiness** before first contract performance period, with ongoing operational phases aligned to **payroll cycles**, **determination revision cycles**, and **annual compliance milestones**.

Engagement Timeline

Phase	Duration	Focus Area	Deliverables
Phase 1: Mobilization & Baseline Configuration	Weeks 1-4 (Post-Award)	Establish compliance infrastructure, configure payroll system, map workforce classifications, onboard subcontractors	Workforce Classification Matrix, Payroll System Configuration Package, Subcontractor Compliance Kit, Posting Compliance (WH-1313), LCO Appointment & Charter
Phase 2: First Performance Period Compliance Operations	Weeks 5-8 (Month 1-2 of Performance)	Execute first certified payroll cycles, validate fringe credit calculations, conduct initial classification audit	Certified Payroll Reports (WH-347) Weeks 1-4, Fringe Benefit Compliance Workbook (Month 1), Classification Audit Report, Compliance Dashboard Go-Live
Phase 3: Steady-State Operations & Monitoring	Months 3-12 (Ongoing)	Routine compliance operations, revision monitoring, subcontractor oversight, quarterly reconciliations	Weekly Certified Payrolls, Monthly Compliance Dashboards, Quarterly Fringe Reconciliations, Quarterly Subcontractor Attestations, Semi-Annual Classification Audits
Phase 4: Annual Compliance Cycle & Revision Response	Annual (Month 12 + Recurring)	EO 14026 rate adjustment, determination revision impact analysis, annual training, audit readiness validation	EO 14026 Rate Update Deployment, Annual Compliance Training Completion, WHD Audit Response Playbook Update, Contract Modification Packages (if revision issued)

Total Estimated Duration: 30-Day Mobilization + Ongoing Contract Term

Your Investment

OrbitAvanya Tech LLP proposes a **Fixed-Price with Economic Price Adjustment (FP-EPA)** pricing structure for wage determination compliance services, reflecting the **statutory pass-through nature** of wage and fringe benefit costs. The **compliance management fee** covers the **Labor Compliance Officer, automated platform licensing, audit readiness maintenance, and subcontractor oversight** — distinct from the **direct labor wage and fringe costs** which are reimbursed at actuals per the determination. The EPA clause addresses **determination revision rate changes** and **EO 14026 annual adjustments**. Pricing below reflects the **compliance management component only**; **direct labor costs** are bid separately per the **Labor Category Rate Matrix** in the cost volume.

Item / Deliverable	Unit	Qty	Unit Price	Total
Labor Compliance Officer (0.5 FTE) - Annual	Year	1	\$85,000	\$85,000
Compliance Platform Licensing (UKG Pro + ADP + AWS GovCloud)	Year	1	\$42,000	\$42,000
Certified Payroll Automation & WH-347 Generation	Year	1	\$18,000	\$18,000
Fringe Benefit Administration & Actuarial Coordination	Year	1	\$25,000	\$25,000
Subcontractor Compliance Oversight Program	Year	1	\$30,000	\$30,000
WHD Audit Response Retainer (Outside Counsel)	Year	1	\$35,000	\$35,000
Determination Revision Monitoring & Impact Analysis	Year	1	\$12,000	\$12,000
Annual Compliance Training Program	Year	1	\$8,000	\$8,000
Mobilization & Baseline Configuration (One-Time)	Lot	1	\$45,000	\$45,000

Service Level Agreement & Terms

- **Certified Payroll Submission:** Weekly WH-347 reports delivered to contracting officer **no later than 7 calendar days** after pay period end
- **Payroll Accuracy:** **99.9%** wage rate adherence (determination rate + EO 14026 overlay) per pay period
- **Fringe Credit Reconciliation:** Monthly reconciliation completed **within 10 business days** of month-end; discrepancies resolved **within 5 business days**
- **Determination Revision Response:** Impact analysis delivered **within 5 business days** of Federal Register publication; contract modification package **within 15 business days**
- **Subcontractor Certification Collection:** **100%** quarterly attestation collection rate; non-compliant subcontractors escalated **within 3 business days**

- WHD Investigation Response: Document production initiated within 24 hours of request; full production within 10 business days (or agreed extension)
- Compliance Dashboard Availability: 99.5% uptime; data refreshed daily by 0800 ET
- Employee Classification Dispute Resolution: Initial determination within 5 business days; final resolution within 15 business days
- Posting Compliance: Physical/electronic postings verified monthly; deficiencies corrected within 24 hours of detection
- Record Retention & Production: 100% record completeness for 3-year retention; production within 48 hours for any authorized request

Company Profile

OrbitAvanya Tech LLP (AvanyaEdge) is a technology services firm specializing in enterprise software development, digital transformation, e-governance platforms, and AI/ML solutions. Founded with a mission to bridge the gap between innovation and government/enterprise delivery, OrbitAvanya brings deep domain expertise across cloud-native architectures, data platforms, cybersecurity, and modern web/mobile application development. Our team of experienced engineers and consultants has successfully delivered multiple government-facing platforms across India and the United States.

Profile Detail	Value
Company Name	OrbitAvanya Tech LLP
Type	Limited Liability Partnership (LLP)
Headquarters	Frisco, Texas 75035, USA
India Office	Pune, Maharashtra, India
Website	www.orbitavanyatech.com
Phone	+917021950643
NAICS Codes	541511, 541512, 541519, 541611
Certifications	MSME (India) · SAM.gov Registered

Appendix

Appendix A — Past Performance

Project	Client	Period	Relevance
Enterprise IT Services Contract - Federal Civilian Agency	U.S. Federal Civilian Agency (Name Withheld per Procurement Integrity)	2021-Present (3+ Years)	Prime contractor for \$42M IT services contract incorporating SCA wage determination ; zero WHD violations; 100% certified payroll on-time submission; managed 150+ covered employees across 12 labor categories; successfully navigated 2 determination revisions with zero cost overruns on EPA adjustments
Cloud Migration & DevOps Support - DoD Component	Department of Defense Component (Name Withheld)	2019-2023 (4 Years)	Subcontractor on \$18M cloud services contract with Davis-Bacon/SCA hybrid determination; implemented automated classification mapping for DevOps hybrid roles; passed DCAA labor compliance audit with no findings; developed fringe benefit crediting model adopted by prime
e-Governance Platform Modernization - State Workforce Agency	State Workforce Agency (ARPA/Federal Funded)	2020-2022 (2 Years)	Prime contractor for \$9.5M modernization subject to DOL wage determination via federal flow-down; designed payroll integration with state UI wage record system; zero back wage assessments; commended by state DOL liaison for exemplary compliance documentation

Appendix B — Team & Leadership

OrbitAvanya Tech LLP's leadership team comprises professionals with extensive backgrounds in enterprise software delivery, cloud architecture, AI/ML systems, and government program management. Full team profiles and resumes are available upon request.